

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

**IMCC’S MOTION FOR LEAVE TO FILE REPLY
IN SUPPORT OF ITS MOTION TO COMPEL DISCOVERY**

Complainant, Intermodal Motor Carriers Conference of the American Trucking Associations, Inc. (“IMCC”) requests leave to file a reply to certain “Counterstatements” of nonparties Direct ChassisLink, Inc. (“DCLI”), Flexi-Van Leasing, Inc. (“Flexi-Van”), and Interpool, Inc. d/b/a TRAC Intermodal (“TRAC Intermodal”) (collectively, the “Intermodal Equipment Providers” or “IEPs”). These counterstatements attempt to impugn both IMCC’s motives for seeking to compel the requested discovery and the integrity of the parties’ counsel and others who will be bound by the Stipulation and Amended Order of Confidentiality jointly filed by IMCC and Respondents on May 21, 2021 and entered by the Presiding Officer on May

24, 2021. These counterstatements do not respond to statements made by IMCC in its Motion to Compel Discovery.

IMCC submits that these extraordinary circumstances justify the filing of a reply pursuant to FMC Rule 502.150(a)(4), and that its Motion for Leave to file the attached reply should be granted.

DATED: May 24, 2021

Respectfully submitted,

/s/ David D. Golden

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INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

IMCC’S REPLY IN SUPPORT OF ITS MOTION TO COMPEL DISCOVERY

On May 14, 2021, Complainant IMCC filed a Motion to Compel response to subpoenas issued to Direct ChassisLink, Inc. (“DCLI”), Flexi-Van Leasing, Inc. (“Flexi-Van”), and Interpool, Inc. d/b/a TRAC Intermodal (“TRAC Intermodal”) (collectively, the “Intermodal Equipment Providers” or “IEPs”). IMCC’s Motion requires the Presiding Officer to assess the relevance of the requested documents and the burden of production. The IEP’s Opposition attempts to interject into this relevance/burden calculus questions concerning confidentiality, alleging (falsely) that IMCC and its counsel intend to allow third parties to use discovery from the IEPs for purposes unrelated to this proceeding. Moreover, complaints regarding the

adequacy of the Order of Confidentiality should be separately considered in this proceeding, and are irrelevant to resolution of the Motion to Compel.

On May 21, IMCC and Respondents jointly filed an agreed Stipulation & Amended Order of Confidentiality specifically to accord the same broad protections provided to the parties' confidential information to all third parties from whom discovery may be sought in this proceeding, including motor carriers, IEPs, and potentially others. The Presiding Officer entered the Stipulation & Amended Order of Confidentiality on May 24. The IEPs' counterstatements neglect to mention that the parties discussed confidentiality issues at length with counsel for the IEPs, and did incorporate many of the IEPs' suggestions in the proposed Stipulation – including supplemental language for the “Outside Counsel Eyes Only” designation, which forbids dissemination of competitively-sensitive documents and information to known competitors. Moreover, the IEPs' redline at Attachment A omits other IEP requests previously rejected by the parties—and which the IEPs apparently now have dropped—that would have unduly interfered with and impeded the parties' ability to litigate this proceeding.

If the IEPs believe they have legitimate concerns regarding confidentiality, they can seek a protective order to limit dissemination of discovery materials under FMC Rule 502.141(j) — rather than opposing discovery of necessary information that will permit the Presiding Officer to make factual determinations regarding the chassis market and interoperable chassis pools, the relevance of which the IEPs concede. *See, e.g.*, IEPs' “Counter-summary of the Background” at 8-9.

WHEREFORE, Complainant IMCC requests that its Motion to Compel be granted.

DATED: May 24, 2021

Respectfully submitted,

/s/ David D. Golden

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CERTIFICATE OF SERVICE

I certify that, on May 24, 2021, a true and current copy of the Motion for Leave to File Reply in Support of Its Motion to Compel Discovery was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel for the IEPs and counsel for the Respondents:

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DATED: May 24, 2021

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